CHAPTER 92 Judgements Expanding the Scope of Article 21

Article 21 – "No person shall be deprived of his life or personal liberty except according to procedure established by law" – has been widened by the Supreme Court into a source of many unenumerated rights:

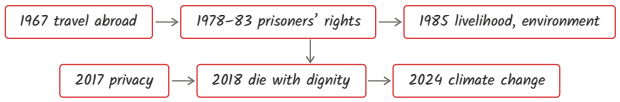


Table 92.1: Judgements declaring various rights as integral parts of the protection of life and personal liberty under Article 21

Sl. No.	Name of the Case	Year of Judgement	Right declared by the Supreme Court as an integral part of Article 21
1.	Satwant Singh Sawhney vs. D. Ramarathnam, Assistant Passport Officer, New Delhi	1967	Right to travel abroad
2.	Sunil Batra vs. Delhi Administration	1978	Right against solitary confinement
3.	Charles Sobhraj vs. Superintendent, Central Jail, New Delhi	1978	Right against bar fetters
4.	M.H. Hoskot vs. State of Maharashtra	1978	Right to free legal aid
5.	Hussainara Khatoon vs. Home Secretary, State of Bihar	1979	Right to speedy trial
6.	Prem Shankar Shukla vs. Delhi Administration	1980	Right against handcuffing
7.	Kishore Singh Ravinder Dev vs. State of Rajasthan	1980	Right against inhuman treatment by the police (use of "third degree" method)
8.	Francis Coralie Mullin vs. Administrator, Union Territory of Delhi	1981	Right to live with human dignity & Right of prisoner to have necessities of life.
9.	Board of Trustees of Port of Bombay vs. Dilip Kumar R. Nadkarni	1982	Right to reputation
10.	T.V. Vatheeswaran vs. State of Tamil Nadu	1983	Right against delayed execution
11.	Sheela Barse vs. State of Maharashtra	1983	Right against custodial violence
12.	Bandhua Mukti Morcha vs. Union of India	1983	Right against bonded labour
13.	Rural Litigation and Entitlement Kendra vs. State of U.P. (popularly known as the Dehradun Quarrying case)	1985	Right to decent environment (Right to a clean and healthy environment)
14.	Attorney General of India vs. Lachma Devi	1985	Right against public hanging
15.	Olga Tellis vs. Bombay Municipal Corporation (popularly known as the Pavement Dwellers case)	1985	Right to livelihood
16.	State of H.P. vs. Umed Ram Sharma	1986	Right to road in hilly areas
17.	Parmanand Katara vs. Union of India	1989	Right to emergency medical aid (Right to Doctor's assistance)
18.	Shantistar Builders vs. N.K. Totame	1990	Right to shelter

Article 21 Judgements – continued

Sl. No.	Name of the Case	Year of Judgement	Right declared by the Supreme Court as an integral part of Article 21
19.	Unni Krishnan, J.P. vs. State of Andhra Pradesh	1993	Right to free education upto 14 years of age
20.	Consumer Education and Research Centre vs. Union of India	1995	Right to health
21.	L.I.C. of India vs. Consumer Education and Research Centre	1995	Right to appropriate life insurance policy
22.	National Human Rights Commission vs. State of Arunachal Pradesh (popularly known as the Chakmas Migrants case)	1996	Right not to be driven out of a state
23.	Paschim Banga Khet Mazdoor Samity vs. State of West Bengal	1996	Right to timely medical treatment in Government Hospital
24.	Police Commissioner, Delhi vs. Registrar, Delhi High Court	1996	Right to fair trial
25.	Vellore Citizens Welfare Forum vs. Union of India	1996	Protection against hazardous industries
26.	Dr. B.L. Wadhera vs. Union of India	1996	Pollution-free water and air
27.	Ashok Kumar Gupta vs. State of U.P.	1997	Right to social and economic justice and empowerment
28.	S.K. Mastan Bee vs. G.M., South Central Railway	2002	Right to family pension
29.	N.D. Jayal vs. Union of India	2003	Right to sustainable development
30.	Noise Pollution, In Re.	2005	Right to freedom from noise pollution
31.	Reliance Energy vs. M.S.R.D.C.	2007	Right to opportunity
32.	Dilip s. Dahanukar vs. Kotak Mahindra	2007	Right of appeal from a judgement of conviction
33.	Ramlila Maidan Incident, In Re.	2012	Right to sleep
34.	K.S. Puttaswamy vs. Union of India	2017	Right to privacy
35.	Common Cause (A Regd. Society) vs. Union of India	2018	Right to die with dignity (Passive euthanasia)
36.	M.K. Ranjitsinh vs. Union of India	2024	Right against the adverse effects of climate change



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